

OVERVIEW

In New York and New Jersey, Flagstar Bank closes **approved** Cooperative **properties**. In order to begin the Cooperative approval process, refer to **product descriptions and guidelines for additional details including the Project Review Submission Instructions, Doc. #3253**. For any questions regarding the Cooperative approval process, contact the Condo Review department at CondoReview@flagstar.com.

CLOSING

Cooperatives cannot be registered through the Delegated channel. Loans that are affiliated with non-profit COOP Corporations that do not have capital stocks or shares in the association cannot be registered as this does not support investor requirements. Refer to the *Approved Settlement Agent for Cooperatives*, **Doc. #4641** for the list of approved settlement attorneys.

CLOSING DOCUMENTS

Cooperative documents cannot be in the name of MERS, per investor guidelines. All Cooperative documents must be original and cannot be uploaded or emailed, with the exception of the UCC documents. Cooperative documents are not included in WBCD. All Co-op specific documents should be prepared and executed by a Flagstar Co-op approved settlement attorney.

REQUIRED COOPERATIVE DOCUMENTS PROVIDED BY THE COOP ATTORNEY

- Original fully executed Proprietary Lease or Occupancy Agreement with seal on document
- Original Stock Certificate

REQUIRED COOPERATIVE DOCUMENTS THAT ARE PREPARED AND PROVIDED BY THE COOP ATTORNEY

- Original fully executed Cooperative Addendum/Rider to Note
- Original Stock Power Form or Assignment of Stock
- Original fully executed Recognition Agreement
- Original fully executed Loan Security Agreement
- Original fully executed Assignment of Proprietary Lease/Assignment of Lease from borrower(s) to lender on Note
- Recorded UCC1/UCC Financing Statement (including UCC1CA_d COOP addendum) with lender on Note as the secured party
 - NJ – requires the UCC1/UCC Financing Statement to be recorded through the county and state. The UCC1CA_d COOP addendum is not required at the state level.
 - NY – requires the UCC1/UCC Financing Statement to be recorded through the county.

If the loan does not close in the name of Flagstar Bank, the following documents are required:

- Original fully executed Assignment of Recognition Agreement from lender on Note to Flagstar Bank, N.A.
- Original fully executed Assignment of Security Agreement from lender on Note to Flagstar Bank, N.A.
- Original fully executed Assignment of Proprietary Lease from lender on Note to Flagstar Bank, N.A.
- UCC3 Assignment from lender on Note to Flagstar Bank, N.A. UCC3 should not be sent for recording by the Co-op settlement attorney until all Co-op post-closing deficiencies are satisfied.
 - NJ – requires the UCC3 Assignment to be recorded through the county and state.



NY & NJ Cooperative Closing Procedures

- NY – requires the UCC3 Assignment to be recorded through the county.

SEND INITIAL CLOSING PACKAGES/COOP COLLATERAL TO

Flagstar Bank, N.A.

5151 Corporate Drive

Troy, MI 48098

Attention: Post Closing Receiving Department, Mail Stop: W-800-1

Include current loan number in the package when sending COOP collateral

TO CURE COOP-RELATED POST CLOSING DEFICIENCIES THAT REQUIRE ORIGINAL COLLATERAL, SEND CONDITIONS TO

Flagstar Bank, N.A.

5151 Corporate Dr.

Troy, MI 48098

Attn: Kristina Weddington/CEMA, Mail Stop W-520-1

Include current loan number in the package for conditions

CO-OP CONTACT INFORMATION

For Co-op post closing issues please contact Flagstar's Co-op Post Closing Team at CoopPostClosing@flagstar.com.